

Non-Disclosure Agreement (NDA) Policy

A Non-Disclosure Agreement (NDA) policy can help your organization protect confidential information, including trade secrets, business strategies, and proprietary data. It sets clear expectations for employees, mitigates risk of information leaks, and potentially prevents legal disputes and financial losses.

This Non-Disclosure Agreement policy template can help you draft the rules of protecting your organization's confidential information.

What is a Non-Disclosure Agreement (NDA) Policy?

A Non-Disclosure Agreement (NDA) policy is a set of guidelines that outline how employees should handle sensitive and proprietary information. It's crucial to protect your company's intellectual property, trade secrets, and other confidential data. An NDA policy helps ensure that employees understand their responsibilities and the potential consequences of disclosing sensitive information.

A Non-Disclosure Agreement (NDA) policy should include:

- The definition of confidential information
- Handling of confidential information
- Disclosure rules
- Consequences for breach

How restrictive should my company NDA policy be?

The restrictions in your NDA policy should be reasonable and necessary to protect your company's interests. It should clearly define what constitutes confidential information and provide guidelines on how to handle such information. It should also outline the potential disciplinary actions for breaches of the policy.

How do I distribute it?

Your NDA policy should be part of your employee handbook or live inside your policy database (e.g., in your [HRIS](#)). Make sure all employees have read and signed it, especially those who have access to sensitive information. Remember, this policy is a living document and should be updated as necessary to reflect changes in laws, regulations, and business practices. Again, every update should be read and signed by all employees as well.

Policy Brief & Purpose

Our Non-Disclosure Agreement (NDA) policy provides a framework for handling confidential information. This policy provides practical advice to avoid issues that might arise from the careless handling of sensitive data.

Scope

We expect all employees at [Company] to follow this policy.

Policy Elements

Handling Confidential Information

We expect our employees to handle confidential information responsibly and to ensure that such information is not disclosed to unauthorized individuals or entities. Confidential information includes, but is not limited to, trade secrets, business plans, customer lists, financial data, and proprietary technology.

We advise our employees to:

- Understand what information is considered confidential
- Not disclose confidential information without proper authorization
- Securely store and dispose of confidential information
- Report any suspected breaches of this policy immediately

Representing our Company

Some employees may be required to discuss confidential information with clients, vendors, or other third parties. In these cases, employees should:

- Only disclose the necessary information
- Ensure that the third party understands the confidential nature of the information
- Seek to have the third party sign a Non-Disclosure Agreement when appropriate

Disciplinary Consequences

We take breaches of this policy seriously.

We may have to take disciplinary action leading up to and including termination if employees do not follow this policy's guidelines. Examples of non-conformity with the employee NDA policy include but are not limited to:

- Unauthorized disclosure of confidential information
- Failure to properly secure confidential information
- Failure to report known breaches of this policy

If you violate this policy inadvertently, you may receive a reprimand. We expect you to comply after that, or stricter disciplinary actions may apply.

Disclaimer:

This policy template is meant to provide general guidelines and should be used as a reference. It may not take into account all relevant local, state, or federal laws and is not a legal document.

Neither the author nor [Your Company Name] will assume any legal liability that may arise from the use of this policy.